

WANDSWORTH BOROUGH COUNCIL

LICENSING SUB-COMMITTEE – 29TH JANUARY 2026

Report by the Director of Resident Services as Chief Licensing Officer on an application under the Licensing Act 2003 for the REVIEW of a Premises Licence in respect of the premises known as Enoteca Chiaia, 178 Garratt Lane, London, SW18 4ED (Wandsworth Town).

DETAILS OF APPLICATION

- 1)
 - a) Applicant details Mr Jean-Pierre Dos Santos, represented by Sarah Taylor c/o Keystone Law
 - b) Premises: Enoteca Chiaia
178 Garratt Lane
London SW18 4ED
 - c) Premises Licence holder: Enoteca Chiaia Limited
 - d) Application for Review of a Premises Licence (a copy of which has been provided to the Sub-Committee).
 - e) Location A map showing the location of the premises is included in the papers provided to the Sub-Committee.

REVIEW APPLICATION

- 1) This is an application by Mr Jean-Pierre Dos Santos for a review of the premises licence held in respect of Enoteca Chiaia, 178 Garratt Lane London SW18 4ED
- 2) Mr Dos Santos has requested a review of the premises licence on the grounds that the current conditions placed on the licence have failed to uphold the licensing objective of the Licensing Act 2003 relating to the prevention of public nuisance due to the failure of the Premises Licence Holder and the Designated Premises Supervisor, Valentino Di Geronimo to promote the licensing objectives.

BACKGROUND INFORMATION

- 3) These premises have held a premises licence as granted by the licensing Sub Committee on the 4th June 2024 The licensable activities and hours are shown in **APPENDIX B.**
- 4) No application has been submitted to vary the licence or change the Designated Premises Supervisor (DPS) since the initial grant of the licence.

CONSULTATION

- 5) The responsible authorities have been notified of the application. In accordance with Regulation 38 of the Licensing Act 2003 (Premises Licences and Club Premises Certificates) Regulations 2005, notice of the application has been advertised in the following ways throughout the consultation period of **11.12.2025 to 8.01.2026**
- A notice displayed at, on or near the premises;
 - A notice displayed on a public notice board at the town hall; and,
 - On the Council's website.
- 6) The Council in its capacity as the Licensing Authority (referred to in the remainder of this report as the Council) may only consider representations if they relate to the promotion of the licensing objectives. The following relevant representations have been received:-
- 7) Responsible Authorities
- a) Environmental Services Officer (Noise & Complaints) – The Environmental Services Officer has raised a representation supporting the application to review the licence, citing multiple complaints concerning noise affecting Mr Dos Santos in his property.
This representation relates to the prevention of public nuisance licensing objective.
- 8) Other Persons – There have been no representations made by other persons.
- 9) Copies of all representations have been forwarded to the applicant and have been made available to the Sub-Committee.

POINTS OF CLARIFICATION

- 10) The Licensing Act 2003 (Hearings) Regulations 2005 requires that a notice of hearing be sent to the applicant and responsible authorities and other persons who have made relevant representations. This must contain, amongst other matters, the points on which the Council considers that it will want clarification at the hearing. No points of clarification have been sought in respect of this review application.

POLICY CONSIDERATIONS

- 11) Licensing Objectives – The Licensing Act 2003 requires the Council to carry out its various licensing functions so as to promote the following licensing objectives:-
- a) the prevention of crime and disorder;
 - b) public safety;
 - c) the prevention of public nuisance; and
 - d) the protection of children from harm.
- 12) Policy Statement - The Licensing Act 2003 requires the Council to publish a "Statement of Licensing Policy" that sets out the policies that the Council will generally apply to promote the licensing objectives when making decisions on applications made under the Act.

The Council made a number of policy decisions in its Statement of Licensing Policy.

The following policy decisions are relevant to this application:-

Part 2 Section 9 paragraph 9.5 Licensing hours

- a) Part 2 Section 17, paragraph 17.1 Annex A Mandatory conditions
- b) Part 2 Section 21 - Public Nuisance;
- c) Part 2 Section 31 - Reviews

Statutory Guidance – In exercising its licensing functions the Council must have regard to the Government's Statutory Guidance. The following sections are relevant to this application:-

Chapter 11 paragraphs 11.1 – 11.29 Reviews

- a) Chapter 1 paragraphs 1.2 – 1.5, 1.9 – 1.10, 1.16, 1.17, 1.18, 1.19;
- b) Chapter 2 paragraphs 2.21 – 2.27 Public Nuisance;
- c) Chapter 10 – conditions attached to premises licences and club premises certificates

- 13) Copies of the Council's Statement of Licensing Policy and the Government's Statutory Guidance will be available at the Sub-Committee meeting.

COMMENTS

- 14) In making their decision in respect of the review application, the Sub-Committee must have regard to Statutory Guidance, the Council's own Statement of Licensing Policy, the need to promote the licensing objectives, as well as to the representations made and the evidence heard.
- 15) In determining the application the Sub-Committee may take such of the steps as it considers appropriate for the promotion of the licensing objectives, which are:
- a) take no further action;
 - b) to issue an informal warning to the designated premises supervisor and/or premises licence holder and / or to recommend improvement within a particular period of time;
 - c) to modify the conditions of the licence (which may include adding new conditions or any alteration or omission of an existing condition), for example by reducing the hours of opening or by requiring door supervisors at particular times;
 - d) to exclude a licensable activity from the scope of the licence, for example, to exclude the performance of live music or playing of recorded music (where it is not within the incidental live and recorded music exemption);
 - e) to remove the designated premises licence supervisor, for example because they consider that the problems are the result of poor management;
 - f) to suspend the licence for a period not exceeding three months; or
 - g) to revoke the licence.
- 16) The Sub-Committee are advised that modifications of conditions and exclusions of licensable activities may be imposed either permanently or for a temporary period not exceeding three months. Where the Sub-Committee takes a steps mentioned in 15 c) to f) it may provide that the modification or exclusion is to have effect for any such period as it may specify, up to a maximum of three months.
- 17) The Sub-Committee must make its decision within 5 working days of the end of the hearing and give full reasons for its decision. Any decision of the Sub-Committee is stayed from coming into effect for 21 days from the date of the decision, pending any

appeal that might be made and the determination of that appeal. Any party to the proceedings may appeal against the decision of the Sub-Committee.

Town Hall
Wandsworth High Street
London SW18 2PU

Paul Chadwick Director of Resident
Services

20th January 2026

APPENDIX B

ENOTECA CHIAIA – 178 GARRATT LANE, LONDON, SW18 4ED		
CURRENT LICENCE		
Day	SALE OF ALCOHOL for consumption on & off the premises	OPENING HOURS
Sunday	10.00-22.30	10.00-23.00
Monday	10.00-22.30	10.00-23.00
Tuesday	10.00-22.30	10.00-23.00
Wednesday	10.00-22.30	10.00-23.00
Thursday	10.00-22.30	10.00-23.00
Friday	10.00-22.30	10.00-23.00
Saturday	10.00-22.30	10.00-23.00